

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1391

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO PROPERTY; AMENDING SECTION 18-7108, IDAHO CODE, AS ADDED IN SECTION 1 OF SENATE BILL NO. 1326, AS AMENDED, IF ENACTED BY THE SECOND REGULAR SESSION OF THE SIXTY-EIGHTH IDAHO LEGISLATURE, TO REVISE PROVISIONS REGARDING SCOPE AND APPLICABILITY; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-7108, Idaho Code, as added in Section 1 of Senate Bill No. 1326, As Amended, if enacted by the Second Regular Session of the Sixty-eighth Idaho Legislature, be, and the same is hereby amended to read as follows:

18-7108. SCOPE AND APPLICABILITY. Nothing in this chapter shall:

(1) Prevent government agents from conducting lawful investigations from public vantage points or entering private land in response to exigent circumstances;

(2) Prevent government agents from entering private land only to the extent necessary to serve civil process or conduct welfare checks;

(3) Interfere with the use or administration of water rights as provided for in Idaho law;

(4) Interfere with the ability of the department of water resources, or a designated watermaster, to make reasonable entry upon any lands to carry out duties imposed by law;

(5) Interfere with the right of the owner or operator of any right-of-way or easement for any ditch, canal, lateral, drain, or other conduit, as described by law;

(6) Limit lawful aerial observation conducted in compliance with section 21-213, Idaho Code;

(7) Limit lawful entry to control noxious weeds as authorized in section 22-2406, Idaho Code;

(8) Limit lawful entry by abatement district employees as authorized in section 39-2804, Idaho Code; ~~or~~

(9) Limit lawful entry as authorized in sections 7-705, 40-1310, 40-2301, and 54-1230, Idaho Code; or

~~(9)~~ (10) Increase or diminish any rights, protections, or legal authorizations with respect to any place of habitation or the associated curtilage.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after its passage and approval.